

**AMENDED AND RESTATED BYLAWS
OF
HOPE CHINESE CHARTER SCHOOL**

ARTICLE I. PURPOSES

Section 1. Purposes. The purposes for which this corporation is organized are:

A. To establish, conduct, manage, and maintain a public charter school pursuant to ORS Ch. 338 within the meaning of Section 501(c)(3) of the Internal Revenue Code of 1986; and

B. To engage in any lawful activity for which corporations may be organized under Oregon laws, none of which is for profit, and within the meaning of Section 501(c)(3) of the Internal Revenue Code of 1986; and

C. Notwithstanding any other provision in this Article I, the corporation is organized exclusively for charitable and educational purposes, including, for such purposes, the making of distributions to organizations that qualify as exempt organizations under Section 501(c)(3) of the Internal Revenue Code of 1986.

Section 2. Offices. The principal office of the corporation shall be located within the territory of the Beaverton School District in the state of Oregon. The corporation may have such other offices within the Beaverton School District as the board of directors may determine or as the affairs of the corporation require from time to time.

ARTICLE II. MEMBERS

The corporation shall have no members.

ARTICLE III. BOARD OF DIRECTORS

Section 1. General Powers. The business affairs of the corporation shall be managed by its board of directors. The board shall administer the finances of the corporation and shall have the sole authority to appropriate money.

Section 2. Number, Tenure, and Elections

A. Unless otherwise determined by the board of directors, there shall be no fewer than five (5) and not more than thirteen (13) members of the board. At least three (3) members of the board must reside within the Portland metropolitan area, and at least three (3) members of the board must be the parents of a student who attends Hope Chinese Charter School (excluding preschool). In addition, the individuals comprising the board of directors must collectively have financial and professional education expertise.

B. The initial board of directors shall be chosen by the incorporator to serve until their successors have been elected and seated at the first annual meeting of the directors.

Except for the initial directors, directors shall be elected at the regular annual meeting of the directors by a majority vote of a quorum of the board of directors then in office.

C. At the first annual meeting following the adoption of these bylaws, the directors shall be divided into two (2) approximately equal groups and designated to serve one (1) or two (2) year terms by a method determined by the board of directors. Thereafter, the term of office of each director shall be two (2) years. The board of directors may shorten any director's term by resolution as may be necessary to stagger the terms of directors as provided for under these bylaws. Notwithstanding this method of electing and staggering directors, the board of directors may fill any vacancy on the board of directors pursuant to Article III, Section 10 of these bylaws.

D. Directors may be elected for an unlimited number of successive terms.

E. The number of directors may be increased or decreased from time to time by resolution of the board of directors. No decrease in numbers shall have the effect of shortening the term of any director. In the event that the number of directors is increased and new directors are appointed, the term will extend to the next annual meeting of the directors.

Section 3. Qualifications of Directors. All directors must be individuals. No director shall be employed as a member of the Hope Chinese Charter School during the term of board service. HCCS Employment of immediate family members of a Director is generally disfavored.

Section 4. Regular Meetings. Regular meetings of the board of directors shall be held at the time and place appointed by the board of directors. All regular meetings of the board of directors shall be held without other notice to directors than this bylaw and a resolution of the board of directors establishing the specific date on which the meeting shall be held. Unless changed by the board of directors, the regular annual meeting shall be held in the month of May at the principal office of the corporation. The board of directors may provide by resolution another time or place within the territory of the Beaverton School District for the holding of regular meetings without other notice than such resolution. If the day fixed for the regular meeting shall be a legal holiday in the state of Oregon, such meeting shall be held on the next succeeding business day.

Section 5. Special Meetings. Special meetings of the board of directors may be called by or at the request of the president (who shall also be chair of the board of directors) or twenty percent of the directors then in office. The person or persons authorized to call special meetings of the board may fix any place within the territory of the Beaverton School District as the place for holding any special meeting of the board called by them.

Section 6. Notice to Directors. Notice of the time and place of any special meeting of the board of directors shall be delivered at least twenty-four (24) hours previously thereto by written notice delivered personally, sent by mail to each director at his/her address as shown by the records of the corporation, or, to the extent allowed by law, sent by electronic mail or such other form of computer communication whereby directors either directly or indirectly receive notice of the meeting. If mailed, such notice shall be deemed to be delivered on the earlier of

when the notice is received or five (5) days after being deposited in the United States mail in a postage prepaid, sealed envelope appropriately addressed to said director. Any director may waive notice of any meeting. The attendance of a director at any meeting shall constitute a waiver of notice for such meeting, except where a director attends a meeting for the express purpose of objecting to the transaction of any business because the meeting is not lawfully called or convened. Neither the purpose of, nor the business to be transacted at, any regular or special meeting of the board need be specified in the notice or waiver of notice of such meeting, unless specifically required by law, by the articles, or by these bylaws.

Section 7. Compliance with Public Meetings Law. Notwithstanding any other notice and/or meeting requirement set forth in these bylaws, the corporation shall fully comply with all the requirements set forth in Oregon's Public Meetings Law, ORS 192.610 – 690[.]

Section 8. Quorum. A majority of the directors in office immediately before a meeting begins shall constitute a quorum for the transaction of business at any meeting of the board. If there is not a quorum at any said meeting, a majority of the directors present may adjourn the meeting from time to time without further notice other than announcement at the meeting, until a quorum shall be present.

Section 9. Manner of Acting. The act of a majority of the directors present in person at a meeting at which a quorum is present shall be the act of the board of directors, unless the act of a greater number is required by law, by the articles, or by these bylaws.

Section 10. Vacancies and Removal

A. A vacancy on the board of directors shall exist upon the death, resignation, or removal of any director.

B. All or any number of directors may be removed, with or without cause, at a meeting called expressly for that purpose by a majority vote of the members present. Absence of any elected director from three consecutive meetings of the board of directors without an excuse deemed valid by the board of directors may be considered as cause for removal.

C. Any director may resign at any time by giving written notice to the board of directors, the president (chair of the board of directors), or the secretary of the corporation. Except as otherwise provided by law, any such resignation shall take effect upon the receipt of such notice or at any later time specified therein. Unless otherwise specified in the notice, the acceptance of such resignation shall not be necessary to make it effective. In the event the resignation of a director is tendered to take effect at a future time, a successor may be appointed to take office when the resignation becomes effective.

D. Vacancies on the board of directors and any directorship to be filled by reason of an increase in the number of directors may be filled by a majority of the remaining directors though less than a quorum, or by a sole remaining director. Each director so elected shall hold office for the balance of the unexpired term of his/her predecessor and until his/her qualified successor is elected and accepts office.

Section 11. Compensation. Directors as such shall not receive any stated salaries for their services, but by resolution of the board of directors, each director may be reimbursed for reasonable and necessary expenses incurred in discharging his or her duties as a director and in furtherance of the purposes of this corporation; but nothing herein contained shall be construed to preclude any director from serving the corporation in any other capacity (except that a director may not be employed as a member of the Hope Chinese Charter School staff) and receiving compensation therefore.

Section 12. Telephone Meetings. Members of the board of directors, or any committee designated by the board of directors, may participate in a meeting of the board of directors, or any committee, by means of conference telephone or similar communications equipment by means of which all persons in the meeting can hear each other, and such participation in a meeting shall constitute presence in person at the meeting.

Section 13. Conflicts of Interest. Members of the board of directors shall adhere to the Ethics and Conflicts of Interest Policy for Board Members adopted by the board of directors, as may be amended from time to time or as may be replaced by any successor conflicts of interest policy adopted by the board of directors.

ARTICLE IV. OFFICERS

Section 1. Officers. The officers of the corporation shall be a president (who by virtue of being appointed president shall simultaneously be deemed to be appointed chair of the board of directors), vice chair, secretary, and treasurer, each of whom shall be directors and shall be appointed by the board of directors. Such other officers and assistant officers may be appointed by the board of directors. Except for the positions of president, secretary, and treasurer, the board may choose not to fill any of the other officer positions for any period.

Section 2. Appointment and Term of Office. The officers of the corporation shall be appointed annually by the board of directors at the regular annual meeting of the board of directors. If the appointment of officers shall not be held at such meeting, such appointment shall be held as soon thereafter as conveniently may be. New offices may be created and filled at any meeting of the board of directors. Each officer shall hold office until a successor has been duly appointed and qualified, or until his/her death, or until he/she shall resign or shall be removed in the manner hereinafter provided. An officer may resign upon ten (10) days written notice. Should the president of the corporation resign, he or she shall also be deemed to resign as chair of the board of directors, and vice versa.

Section 3. Vacancies and Removal

A. A vacancy in any office because of death, resignation, removal, disqualification or any other cause may be filled by the board of directors.

B. Any officer, assistant officer, or agent appointed by the board of directors may be removed by the board of directors at any time, with or without cause; but such removal shall be without prejudice to the contract rights, if any, of the person so removed. Should the president of the corporation be removed, he or she shall also be deemed to be removed as chair of the board of directors, and vice versa.

Section 4. Compensation. Compensation of chair of the board, vice chair, secretary, and treasurer shall be governed by Article III, Section 11 of these bylaws. The salaries and other compensation of any other officers, assistant officers, and agents of the corporation shall be fixed by an act of the board of directors, unless provided otherwise by statute, the articles of incorporation, or these bylaws.

Section 5. President and Chair. The president is chair of the board of directors and shall, when present, preside at all meetings of the board of directors and exercise and perform such other powers and duties as the board of directors may assign to the president from time to time. The president shall be the principal executive officer of the corporation and, subject to the control of the board of directors, in general supervise and control all of the business and affairs of the corporation. The president may sign, with the secretary or any other proper officer of the corporation thereunto authorized by the board of directors, any deeds, mortgages, bonds, contracts, or other instruments which the board of directors has authorized to be executed, except in cases where the signing and execution thereof shall be expressly delegated by the board of directors or by these bylaws to some other officer or agent of the corporation, or shall be required by law to be otherwise signed or executed; and, in general, shall perform all duties incident to the office of president and such other duties as may be prescribed by the board of directors from time to time.

Section 6. Vice Chair. In the absence of the president or in the event of his/her death, inability or refusal to act, the vice chair shall perform the duties of the president and chair of the board of directors, and when so acting shall have all the powers of and be subject to all the restrictions upon the president and chair of the board of directors; and shall perform such other duties as from time to time may be assigned to him/her by the president or by the board of directors.

Section 7. Secretary. The secretary shall: (a) prepare or cause to be prepared the minutes of the board of directors' meetings and keep them in one or more books provided for that purpose; (b) authenticate such records of the corporation as shall from time to time be required; (c) see that all notices are duly given in accordance with the provisions of these bylaws or as required by law; (d) be custodian of the corporate records and of the seal of the corporation, if any, and see that the seal of the corporation, if any, is affixed to all documents the execution of which on behalf of the corporation under its seal is duly authorized; (e) keep a register of the mailing address of each director; and (f) in general, perform all duties incident to the office of secretary and such other duties as from time to time may be assigned to him/her by the president or the board of directors.

Section 8. Treasurer. If required by the board of directors, the treasurer shall give a bond for the faithful discharge of his/her duties, in such sum and with such surety or securities as the board of directors shall determine. He/she shall: (a) have charge and custody of and be responsible for all funds and securities of the corporation; receive and give receipts for money due and payable to the corporation from any source whatsoever, and deposit all such money in the name of the corporation in such banks, trust companies, or other depositories as shall be selected in accordance with the provisions of Article VIII of these bylaws; and (b) in general perform all of the duties incident to the office of treasurer and such other duties as from time to time may be assigned to him/her by the president or the board of directors.

Section 9. Other Officers. Other officers, assistant officers, or agents appointed by the board of directors shall exercise such powers and perform such duties as shall be determined from time to time by the board of directors, except such duties as shall be exclusively delegated to the board of directors by statute, the articles of incorporation, or these bylaws. Unless otherwise specified by the board of directors, any assistant secretary, or assistant treasurer shall have authority to exercise any powers delegated to them from the secretary or treasurer, respectively, and in the absence of the secretary or treasurer shall assume all powers and discharge all duties ordinarily exercised by such absent officer.

Section 10. Budget. If the board of directors shall require, the finance committee may, at such time as the board of directors may designate, prepare, and submit an annual budget for discussion and approval by the board of directors.

ARTICLE V. SHARES OF STOCK AND DIVIDENDS PROHIBITED

The corporation shall not have or issue shares of stock. No dividend shall be paid and no part of the income of the corporation shall be distributed to its directors or officers. The corporation may pay compensation in a reasonable amount to its directors or officers for services rendered as provided by the articles, other provisions of these bylaws, or resolution of the board of directors.

ARTICLE VI. LOANS TO DIRECTORS AND OFFICERS PROHIBITED

No loan shall be made by the corporation to its directors or officers. The directors of the corporation who vote for or assent to the making of a loan to a director or officer of the corporation, and any officer or officers participating in the making of such loan, shall be jointly and severally liable to the corporation for the amount of such loan until the repayment thereof.

Any director against whom a claim shall be asserted under or pursuant to this Article VI shall be entitled to contribution from the other directors who voted for the action upon which the claim is asserted. To the extent that any director is required to pay such claim, he/she shall be subrogated to the rights of the corporation against the debtor on the loan.

ARTICLE VII. COMMITTEES

Section 1. Committees of Directors. The board of directors, by resolution adopted by a majority of the directors in office, may designate and appoint one or more committees. Each duly designated and appointed committee shall consist of one or more directors, which committees, to the extent provided in said resolution, shall have and exercise the authority of the board of directors in the management of the corporation and shall carry out such responsibilities and functions as are assigned to it by the board of directors, except those items prohibited by ORS 65.354. The designation and appointment of any such committee and the delegation thereto of authority shall not operate to relieve the board of directors or any individual director of any responsibility imposed upon him or her by law.

Section 2. Limits on Authority of Committees. No committee may do any of the following:

- A. authorize distributions;
- B. approve or recommend to members dissolution, merger, or the sale, pledge, or transfer of all or substantially all of the corporations's assets;
- C. elect, appoint, or remove directors or fill vacancies on the board or on any of its committees; or
- D. adopt, amend, or repeal the articles or bylaws.

Section 3. Term of Office. Each member of a committee shall continue as such until the next regular annual meeting of the directors of the corporation and until his/her successor is appointed, unless the committee shall be sooner terminated, or unless such member be removed from such committee, or unless such member shall cease to qualify as a member thereof.

Section 4. Committee Chair. One member of each committee shall be appointed committee chair by the person or persons authorized to appoint the members thereof.

Section 5. Vacancies. Vacancies in the membership of any committee may be filled by appointments made in the same manner as provided in the case of the original appointments.

Section 6. Quorum. Unless otherwise provided in the resolution of the board of directors designating a committee and except as provided in Section 1, a majority of the whole committee shall constitute a quorum and the act of a majority of the members present at a meeting at which a quorum is present shall be the act of the committee. At least one of the committee members present must then be a member of the board of directors.

Section 7. Rules. Each committee may adopt rules for its own government not inconsistent with these bylaws or with rules adopted by the board of directors.

Section 8. Other Committees. Other committees or task forces not having and exercising the authority of the board of directors in the management of the corporation may be appointed in such manner as may be designated by a resolution adopted by a majority of the directors present, and shall not be subject to the provisions of the Oregon Nonprofit Corporation Act governing meetings, action without meetings, notice and waiver of notice, and quorum and voting requirements of the board of directors. The board of directors may, from time to time, request such committees to provide the board with a full and complete report when required.

Section 9. Compliance with Public Meetings Law. Notwithstanding any other notice and/or meeting requirement set forth in these bylaws, committees and task forces shall fully comply with all the requirements set forth in Oregon's Public Meetings Law, ORS 192.610 – 690.

ARTICLE VIII. CONTRACTS, LOANS, CHECKS, DEPOSITS

Section 1. Contracts. The board of directors may authorize any officer or officers, or agent or agents, to enter into any contract or execute and deliver any instrument in the name of

and on behalf of the corporation and such authority may be general or confined to specific instances.

Section 2. Loans. No loans shall be contracted on behalf of the corporation and no evidences of indebtedness shall be issued in its name unless authorized by a resolution of the board of directors. Such authority may be general or confined to specific instances.

Section 3. Checks, Drafts, Etc. All checks, drafts, or other orders for the payment of money, notes, or other evidences of indebtedness, issued in the name of the corporation shall be signed by such officer or officers, or agent or agents, of the corporation and in such manner as shall from time to time be determined by resolution of the board of directors.

Section 4. Deposits. All funds of the corporation not otherwise employed shall be deposited from time to time to the credit of the corporation in such banks, trust companies, or other depositories as the board of directors may select.

ARTICLE IX. BOOKS AND RECORDS

Section 1. Books and Records. The corporation shall keep correct and complete books and records of account and shall also keep minutes of the proceedings of its board of directors and committees having any of the authority of the board of directors, and shall keep at its registered or principal office a record giving the names and addresses of the directors entitled to vote. All books and records of the corporation may be inspected by any director, or his/her agent or attorney, for any proper purpose at any reasonable time.

Section 2. Financial Statements. At the close of each taxable year the directors shall engage an accountant to prepare a financial statement for the corporation.

Section 3. Annual Audit. The corporation shall have an annual audit of the accounts of the charter school prepared in accordance with Oregon's Municipal Audit Law.

ARTICLE X. FISCAL YEAR

The fiscal year of the corporation shall begin on the first day of July and end on the last day of June of each year.

ARTICLE XI. WAIVER OF NOTICE

Whenever any notice is required to be given under the provisions of the Oregon Nonprofit Corporation Act or under the provisions of the articles of incorporation or the bylaws of the corporation, a waiver thereof in writing signed by the person or persons entitled to such notice, whether before or after the time stated therein, shall be deemed equivalent to the giving of such notice.

ARTICLE XII. AMENDMENTS TO BYLAWS

These bylaws may be altered, amended, or repealed and new bylaws may be adopted by a majority of the directors present at any regular meeting or special meeting, if written notice is

given of the intention to alter, amend, or repeal or to adopt new bylaws at such meeting.

ARTICLE XIII. HEADINGS

The headings contained in these bylaws are for convenience only and shall not in any way affect the meaning or interpretation of these bylaws.

ARTICLE XIV. INDEMNIFICATION OF OFFICERS, DIRECTORS, EMPLOYEES, AND AGENTS

The corporation shall indemnify, to the fullest extent permitted by the Oregon Nonprofit Corporation Act, any person who has been made, or is threatened to be made, a party to an action, suit, or proceeding, whether civil, criminal, administrative, investigative, or otherwise (including an action, suit, or proceeding by or in the right of the corporation) by reason of the fact that the person is or was a director, trustee, officer, employee, or agent of the corporation, or a fiduciary within the meaning of the Employee Retirement Income Security Act of 1974 with respect to an employee benefit plan of the corporation, or serves or served at the request of the corporation as a director, trustee, officer, employee, or agent, or as a fiduciary of an employee benefit plan of another corporation, partnership, joint venture, trust, or other enterprise.

In addition, the corporation shall pay for or reimburse any reasonable expenses incurred by such persons who are parties to such proceedings, in advance of the final disposition of such proceedings, to the full extent permitted by the Oregon Nonprofit Corporation Act.

Indemnification provided hereunder shall continue to cover any director, officer, trustee, employee, or agent after such person ceases to serve in said capacity and shall inure to the benefit of such person's heirs, executors, and administrators.

The right to indemnification conferred by this Article XIV shall be considered a contract right between the corporation and any such person entitled to indemnity hereunder.

ARTICLE XV. DISTRIBUTIONS AND DISSOLUTION

No director or officer of the corporation, or any private individual, shall be entitled to share in the distribution of any of the corporate assets upon dissolution of the corporation or the winding up of its affairs. Upon such dissolution or winding up, after paying or making adequate provision for the payment of all the liabilities of the corporation, all the remaining assets of the corporation shall be distributed by the directors of the corporation for a purpose or purposes similar to those set forth in Section 4.1 of the Articles of Incorporation, to any other organization that then qualifies for exemption under the provisions of Section 501(c)(3) of the Code. Consistent with such plan of distribution, assets of the corporation that were purchased with public funds shall be distributed to the Oregon Board of Education. Any such assets not so disposed of shall be disposed of by the court that has general jurisdiction for the county in which the principal office of the corporation is located, exclusively to another Section 501(c)(3) organization to be used in furtherance of its exempt purpose or purposes.

I, Roxanne Gryder, as Secretary of Hope Chinese Charter School, do hereby certify the

foregoing to be the bylaws of said corporation, as adopted by the board of directors effective November 20, 2019.

A handwritten signature in dark ink, appearing to read "Roxanne Gryder". The signature is fluid and cursive, with the first name "Roxanne" and last name "Gryder" clearly distinguishable.

Roxanne Gryder, Board Secretary